

HOUSE No. 5278

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, March 25, 2026.

The committee on Transportation, to whom was referred the joint petition (accompanied by bill, House, No. 3713) of Sally P. Kerans relative to airplane noise data collection, reports recommending that the accompanying bill (House, No. 5278) ought to pass.

For the committee,

JAMES ARCIERO.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to noise report data and good neighbor policy at Beverly Regional Airport.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Notwithstanding any general or special law to the contrary the
2 Massachusetts Aeronautics Division (“The Division”) shall collect and post annually on its
3 website all noise reports and complaints made to Beverly Regional Airport (BVY) between April
4 1 and October 1.

5 For the purposes of this section, “noise complaint” shall refer to any complaint or report
6 of excessive noise and shall include the day, date and hour of the week it occurred made via
7 airport website, App, telephone, voicemail, email, written letter or in-person visit to the Airport
8 or to a Commissioner by any resident.

9 This data shall be collected by The Division no later than 14 days following the end of
10 each month and posted in a readily accessible section of the Division’s public website no later
11 than 20 days following the end each month. The data shall be posted and shall remain on the
12 website in perpetuity.

SECTION 2. The Division shall collect from the BVY Tower the number and time of day of all so-called “Touch and Go” operations between April 1 and October 1. This data shall be collected no later than 14 days following the end of each month and shall be posted in a readily accessible section of the BVY public website no later than 20 days following the end each month and shall remain on the website in perpetuity.

The Administrator of The Division shall share all noise data collected with the House and Senate Chairs of the Joint Committee on Transportation and with the Secretary of Transportation by December 31 of each year.

SECTION 3. At the request of at least two commissioners of the BVY Regional Airport, the Airport Commission shall convene a public meeting devoted to noise reports at which members of the public may ask questions of Commission Members and the Airport Manager, who shall, to the best of their ability, answer the questions.

SECTION 4. It shall be the responsibility of The Division to provide annually to the BVY Airport Manager and Commissioners guidance in the development, implementation and oversight of a policy, commonly referred to as Good Neighbor or Fly Neighborly policy, designed to facilitate an understanding among flight school owners, flight school instructors and student pilots and all pilots of the airport of the noise impact of “Touch and Go” operations on neighbors within three miles of runways. Said Good Neighbor policy guidance shall include but not be limited to providing airports with a sample written policy, providing a written copy of the policy to be given to all student pilots and pilots to be posted visibly in several locations, including pilot areas, suggested steps for informing all airport tenants of the policy, and

34 providing a social media toolkit for publicizing said policy to all airport tenants, pilots, student
35 pilots and Commissioners.

36 SECTION 5. Each applicant for a badge at BVY shall be provided with a copy of the
37 Good Neighbor Policy.

38 This act shall take effect on January 1, 2027.